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**UNITED STATES PATENT AND TRADEMARK OFFICE, TRADEMARK
TRIAL AND APPEAL BOARD**

Kang Brothers - Trademark Application

Case No. 97/324598

**COMPLAINT FOR DAMAGES AND
DEMAND FOR JURY TRIAL**

Administrative Trademark Judge Panel
Board Panel

Plaintiff Kang Brothers Wholesale Produce, Inc. alleges as follows:

1. This action arises from trademark office action response involving USPTO Examining Attorney.
2. Venue is proper in this Court under Code of Civil Procedure section 395 because the obligations and injuries alleged occurred in the County of Los Angeles.
3. Defendant USPTO Examining Attorney is represented in this matter by Not applicable.

FIRST CAUSE OF ACTION — Trademark Office Action Response - Relief Requested

4. Plaintiff incorporates each preceding paragraph as though fully set forth here. Plaintiff has been damaged in a sum within the unlimited jurisdiction of this Court, to be established according to proof.

SECOND CAUSE OF ACTION — Declaratory Relief (Code Civ. Proc. 1060)

5. Plaintiff incorporates each preceding paragraph as though fully set forth here. As a direct and proximate result, plaintiff suffered damages in an amount to be proven at trial, exceeding the jurisdictional minimum of this Court.

PRAYER FOR RELIEF

WHEREFORE, plaintiff prays for general and special damages according to proof, prejudgment interest, costs of suit, and such other relief as the Court deems just.

Dated: March 31, 2026

Alvarado & Sung LLP

By: _____

Naomi Sugihara
Attorneys for Kang Brothers Wholesale Produce, Inc.